

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 SENATE BILL NO. 1256

By: Hines of the Senate

and

6 Harris of the House

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10 COMMITTEE SUBSTITUTE

11 An Act relating to bail; amending 22 O.S. 2021,
12 Section 1105, as amended by Section 1, Chapter 172,
13 O.S.L. 2025 (22 O.S. Supp. 2025, Section 1105), which
14 relates to defendant discharged on giving bail;
authorizing certain court to order ignition interlock
device for certain defendants; and providing an
effective date.

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17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 22 O.S. 2021, Section 1105, as
19 amended by Section 1, Chapter 172, O.S.L. 2025 (22 O.S. Supp. 2025,
20 Section 1105), is amended to read as follows:

21 Section 1105. A. Except as otherwise provided by this section,
22 upon the allowance of bail and the execution of the requisite
23 recognizance, bond, or undertaking to the state, the magistrate,
24 judge, or court shall, if the defendant is in custody, make and sign

1 an order for discharge. The court, in its discretion, may prescribe
2 by court rule the conditions under which the court clerk or deputy
3 court clerk, or the sheriff or deputy sheriff, may prepare and
4 execute an order of release on behalf of the court.

5 B. No police officer or sheriff may release a person arrested
6 for a violation of an ex parte or final protective order as provided
7 in Sections 60.2 and 60.3 of this title, or arrested for an act
8 constituting domestic abuse as specified in Section 644 of Title 21
9 of the Oklahoma Statutes, or arrested for any act constituting
10 domestic abuse, stalking, or harassment as defined by Section 60.1
11 of this title, or arrested for an act constituting domestic assault
12 and battery or domestic assault and battery with a deadly weapon
13 pursuant to Section 644 of Title 21 of the Oklahoma Statutes,
14 without the violator appearing before a magistrate, judge, or court.
15 To the extent that any of the following information is available to
16 the court, the magistrate, judge, or court shall consider, in
17 addition to any other circumstances, before determining bond and
18 other conditions of release as necessary for the protection of the
19 alleged victim, the following:

20 1. Whether the person has a history of domestic violence or a
21 history of other violent acts;

22 2. The mental health of the person;

23 3. Whether the person has a history of violating the orders of
24 any court or governmental entity;

1 4. Whether the person is potentially a threat to any other
2 person;

3 5. Whether the person has a history of abusing alcohol or any
4 controlled substance;

5 6. Whether the person has access to deadly weapons or a history
6 of using deadly weapons;

7 7. The severity of the alleged violence that is the basis of
8 the alleged offense including, but not limited to:

9 a. the duration of the alleged violent incident,

10 b. whether the alleged violent incident involved serious
11 physical injury,

12 c. whether the alleged violent incident involved sexual
13 assault,

14 d. whether the alleged violent incident involved
15 strangulation,

16 e. whether the alleged violent incident involved abuse
17 during the pregnancy of the alleged victim,

18 f. whether the alleged violent incident involved the
19 abuse of pets, or

20 g. whether the alleged violent incident involved forcible
21 entry to gain access to the alleged victim;

22 8. Whether a separation of the person from the alleged victim
23 or a termination of the relationship between the person and the
24 alleged victim has recently occurred or is pending;

1 9. Whether the person has exhibited obsessive or controlling
2 behaviors toward the alleged victim including, but not limited to,
3 stalking, surveillance, or isolation of the alleged victim;

4 10. Whether the person has expressed suicidal or homicidal
5 ideations; and

6 11. Any information contained in the complaint and any police
7 reports, affidavits, or other documents accompanying the complaint.

8 C. A person arrested for:

9 1. A violation of an ex parte or final protective order as
10 provided in Sections 60.2 and 60.3 of this title;

11 2. An act constituting domestic abuse, domestic assault and
12 battery, or domestic assault and battery with a deadly weapon as
13 specified in Section 644 of Title 21 of the Oklahoma Statutes; or

14 3. An act constituting domestic abuse, stalking, or harassment
15 as defined by Section 60.1 of this title,
16 shall not be eligible for a personal recognizance bond pursuant to
17 Section 1108.1 of this title.

18 D. No police officer or sheriff may release a person arrested
19 for any violation of subsection G of Section 2-401 of Title 63 of
20 the Oklahoma Statutes, without the violator appearing before a
21 magistrate, judge, or court. In determining bond and other
22 conditions of release, the magistrate, judge, or court shall
23 consider any evidence that the person is in any manner dependent
24 upon a controlled dangerous substance or has a pattern of regular,

1 illegal use of any controlled dangerous substance. A rebuttable
2 presumption that no conditions of release on bond would assure the
3 safety of the community or any person therein shall arise if the
4 state shows by clear and convincing evidence:

5 1. The person was arrested for a violation of subsection G of
6 Section 2-401 of Title 63 of the Oklahoma Statutes, relating to
7 manufacturing or attempting to manufacture a controlled dangerous
8 substance, or possessing any of the substances listed in subsection
9 G of Section 2-401 of Title 63 of the Oklahoma Statutes with the
10 intent to manufacture a controlled dangerous substance; and

11 2. The person is in any manner dependent upon a controlled
12 dangerous substance or has a pattern of regular illegal use of a
13 controlled dangerous substance, and the violation referred to in
14 paragraph 1 of this subsection was committed or attempted in order
15 to maintain or facilitate the dependence or pattern of illegal use
16 in any manner.

17 E. No police officer or sheriff may release a person arrested
18 for a second or subsequent violation of Section 11-902 of Title 47
19 of the Oklahoma Statutes, without the granting of bail by a
20 magistrate, court, judge, or on-call judge, whether by telephone or
21 in person. In determining bond and other conditions of release, the
22 magistrate, judge, on-call judge, or court shall consider any
23 evidence that the person is in any manner dependent upon alcohol or
24 a controlled dangerous substance or has a pattern of regular abuse

1 of alcohol or the illegal use of any controlled dangerous substance.
2 If the person was arrested for any crime provided for in Section 11-
3 902 of Title 47 of the Oklahoma Statutes, the court shall consider
4 the threat the person poses to the public safety and shall present
5 written findings on the bail amount. In addition, the person may,
6 at the discretion of the court, be required to use an ignition
7 interlock device as provided by subparagraph n of paragraph 1 of
8 subsection A of Section 991a of Title 22 of the Oklahoma Statutes as
9 a condition of bail.

10 SECTION 2. This act shall become effective November 1, 2026.

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12 60-2-17497 GRS 04/16/26
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